

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

3. DESERIE FINLEY V. RYAN NUTTING

25FL0988

On April 22, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served on May 6, 2026.

Respondent has not filed a Responsive Declaration to Request for Order.

The parties attended Child Custody Recommending Counseling (CCRC) on June 5, 2026. They were able to reach some agreements but could not agree on all issues. A report with the agreements and recommendations was prepared and mailed to the parties on June 10, 2026.

Petitioner filed a Reply Declaration to CCRC Report on July 10th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made July 9th the last day for filing Petitioner’s reply. Therefore, it is late filed and has not been considered by the court.

Petitioner is requesting sole legal and sole physical custody. She asks that Respondent have only professionally supervised, non-overnight, visits. She further requests an order prohibiting Respondent from transporting the minor with a firearm in his vehicle unless secured in accordance with California gun laws. In the event the minor ever visits Respondent’s home, Petitioner asks that all firearms and ammunition in Respondent’s home be secured in accordance with California gun laws. She further requests an order for the parents to communicate using Talking Parents and an order precluding the parents from disparaging one another in the presence of the minor or allowing others to do so. Finally, she asks that the parties be ordered to administer all prescribed medications in accordance with the prescription.

After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the June 10, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court.

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Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE JUNE 10, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.